

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601725	LUA vs PLATINUM SALES AND SERVICES, INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

The hearing on the demurrer and motion to strike is continued to a date agreed upon by the Court and parties.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602281	BLAYLOCK vs ENGLEMAN	MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

Tentative Ruling:

No opposition filed. Motion granted. Prevailing party to prepare order.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2203266	HARB VS COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Summary of Ruling: The Court denies the motion. The Court grants the request for judicial notice. The Court overrules the evidentiary objections.

Factual / Procedural Context

This is a wrongful death case. On August 4, 2024, Plaintiffs Ali Harb, Ibrahim Harb and Lama Harb, individually and as the successors-in-interest of Decedent Ferial Harb (“Plaintiffs”) filed a Complaint against Defendants City of Riverside (the “City”), County of Riverside (the “County”), State of California, Brian Gene Bozarth, III (“Brian”), and Melissa Bozarth (“Melissa”) (together “Defendants”) asserting causes of action for: (1) Dangerous Condition of Public Property; (2) Negligence; (3) Wrongful Death; and (4) Recovery under C.C.P. § 377.34.¹ In the Complaint, Plaintiffs allege that on January 19, 2022, Decedent was walking near the intersection of Lincoln Avenue and Victoria Avenue in the Riverside (the “Intersection”) when she was struck by a vehicle driven by Brian, who owned the vehicle with Melissa. (Complaint at ¶ 12.) Decedent sustained fatal injuries as a result of the collision. (*Ibid.*) Brian was inattentive to his driving,

¹ The State of California was dismissed on September 14, 2022 and the County of Riverside was dismissed on April 11, 2023.